

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

August 6, 2026

8:30 a.m./1:30 p.m.

9. JEREMY NICHOLS V. OLIVIA NICHOLS

23FL1221

On May 12, 2026, Petitioner filed a Request for Order (RFO) seeking to bifurcate the issue of marital status. All required documents were electronically served on May 13th.

Respondent filed and served a Responsive Declaration to Request for Order on July 17, 2026, however she failed to fill out the hearing date therefore it is unclear which pending RFO this is in response to.

Petitioner's Reply in Support of Request for Order for Separate Trial to Terminate Marital Status was filed on July 28th; it was served on July 29th.

Petitioner asks the court to bifurcate the issue of marital status. He has filed the requisite FL-315 and states there are no community property retirement accounts.

Respondent opposes the request stating that there are unresolved financial and property issues. If the court does grant the bifurcation, Respondent asks that all appropriate statutory safeguards be put in place to preserve Respondent's rights to "property, support, retirement, insurance, credits, reimbursements, fees, and all other reserved issues."

"The court may separately try one or more issues before the trial of the other issues if resolution of the bifurcated issue is likely to simplify the determination of the other issues." Cal. Rules of Ct. Rule 5.390(c). In dissolution proceedings, the court may bifurcate the issue of the dissolution of the marriage and enter a status only judgment. *Id.* at (c)(7); Fam. Code § 2337. In fact, it is the public policy of the state to favor bifurcation where the dissolution of marriage would otherwise be postponed due to issues of property, support, custody or attorney's fees. *In re Marriage of Fink*, 54 Cal. App. 3d 357 (1976). In furtherance of that policy, the party moving for bifurcation need only show slight evidence in support of its motion. *Girons v. Sup. Ct.*, 202 Cal. App. 3d 786 (1988). In contrast, the party opposing the motion "must present compelling reasons for denial." *Id.* at 790. Of course, despite the general policy in favor of bifurcation, the moving party must ensure that "[a]ll pension plans that have not been divided by court order that require joinder ..." have been joined. Cal. Rule Ct. 5.390(d)(1). A party seeking bifurcation is to submit a completed FL-315 evidencing such. Cal. Rule Ct. 5.390(a).

After reviewing the filings of the parties, the court finds good cause to bifurcate the case and grant a separate trial on the issue of marital status only. The court orders parties to appear for hearing on the status-only judgment.

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TENTATIVE RULING #9: AFTER REVIEWING THE FILINGS OF THE PARTIES, THE COURT FINDS GOOD CAUSE TO BIFURCATE THE CASE AND GRANT A SEPARATE TRIAL ON THE ISSUE OF MARITAL STATUS ONLY. THE COURT ORDERS PARTIES TO APPEAR FOR HEARING ON THE STATUS-ONLY JUDGMENT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.